IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 311
CA-(CAA)-13/ND/2023
New CP(AA) 21/2024

IN THE MATTER OF:
Fortis Emergency Services Limited and Fortis Hospitals Limited ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 22.03.2024

CORAM:
SH. ASHOK KUMAR BHARDWAJ
HON'BLE MEMBER (J)

SH. SUBRATA KUMAR DASH
HON'BLE MEMBER (T)

PRESENT:
For the Applicant : Adv. Sanjeev Kumar Sharma, Adv. Vaibhav Kakkar, Adv. Arunav Guha Roy, Adv. Siddharth Jain, Adv. Anushree Poddar
For the Respondent :

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

The present petition has been preferred for sanction of Fortis Emergency Services Limited (Applicant No. 1/First Transferor Company) and Birdie & Birdie Realtors Private Limited (Applicant No. 2/Second Transferor Company) and Fortis Health Management (East) Limited (Applicant No. 3/Third Transferor Company) and Fortis Cancer Care Limited (Non-Applicant/Fourth Transferor Company) with Fortis Hospitals Limited (Applicant No. 4/Transferee Company) Under Section 230-232 of Companies Act, 2013.

The petition is second motion under Section 230-232 of the Companies Act, 2013. The Scheme of Amalgamation is espoused under Section 230 to 232 and other applicable provisions of the Companies Act, 2013 for merger/amalgamation of the aforementioned companies to achieve the objects mentioned in the scheme of amalgamation.

Heard. Issue notice to RD, RoC, Income-tax authorities, OL, the Reserve Bank of India, the Registrar, established under sub-section (1) of section 7 of the Competition Act, 2002 (12 of 2003) and other sectoral regulators or authorities which are likely to be affected by the compromise or arrangement. The representations, if any, to be made by the notice shall be made within a period of thirty days from the date of receipt of the notice, failing which, it shall be presumed that they have no representations to make on the proposals.

Ld. Counsel for the Petitioner undertakes to serve notice upon the authorities/offices referred to hereinabove by all modes viz. registered post, speed post and E-mail. Affidavit of service be filed within one week. The petitioner shall also make all the documents referred to in Section 230(3) of the Companies Act, 2013 viz., a statement disclosing the details of the compromise, arrangement, a copy of the valuation report, if any, and their effect on creditors, key managerial personnel, promoters and non-promoter members, and the debenture-holders and the effect of the compromise or arrangement on any material interests of the directors of the company or the debenture trustees, if any, to the authorities referred to in Section 230(5) of the Companies Act, 2013 (ibid). The documents as also a copy of the notice to be served in terms of the present order upon the authorities referred to in Section 230(5) of the Companies Act shall also be placed on the website of the company, if any, and shall also be published in two national newspapers, namely Financial Express (English) in Delhi Edition & Dainik Bhaskar (Hindi) in Delhi Edition in circulation in the locality/state where the registered offices of the petitioners are located.

List on 31.05.2024.

Sd/-
(SUBRATA KUMAR DASH)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

UPASANA